

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Luke Petrinovic	Team: Squad #13	CCRB Case #: 201600145	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 01/07/2016 7:18 PM	Location of Incident: 165th Street and 89th Avenue; 103rd Precinct stationhouse	18 Mo. SOL 7/7/2017	Precinct: 103		
Date/Time CV Reported Fri, 01/08/2016 10:44 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 01/08/2016 10:44 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Gregory Elz	15859	955900	103 PCT
2. SGT Scott Hamburger	03875	945802	103 PCT
3. POM Taylor Kraft	168	956014	103 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Robert Immendorfer	15936	955997	103 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Scott Hamburger	Abuse: At 165th Street and 89th Avenue, in Queens, SGT Scott Hamburger stopped the vehicle in which § 87(2)(b) was an occupant.	A . Exonerated
B . POM Taylor Kraft	Abuse: At 165th Street and 89th Avenue, in Queens, PO Taylor Kraft stopped the vehicle in which § 87(2)(b) was an occupant.	B . Exonerated
C . SGT Scott Hamburger	Abuse: At 165th Street and 89th Avenue, in Queens, SGT Scott Hamburger searched § 87(2)(b)	C . Exonerated
D . POM Taylor Kraft	Abuse: At 165th Street and 89th Avenue, in Queens, PO Taylor Kraft searched § 87(2)(b)	D . Exonerated
E . SGT Scott Hamburger	Abuse: At 165th Street and 89th Avenue, in Queens, SGT Scott Hamburger searched the vehicle in which § 87(2)(b) was an occupant.	E . Exonerated
F . POM Taylor Kraft	Abuse: At 165th Street and 89th Avenue, in Queens, PO Taylor Kraft searched the vehicle in which § 87(2)(b) was an occupant.	F . Exonerated
G . POM Taylor Kraft	Abuse: At 165th Street and 89th Avenue, in Queens, PO Taylor Kraft searched § 87(2)(b)	G . Exonerated
H . POM Taylor Kraft	Discourtesy: At 165th Street and 89th Avenue, in Queens, PO Taylor Kraft spoke discourteously to § 87(2)(b)	H . Unsubstantiated
I . POM Gregory Elz	Discourtesy: At the 103rd Precinct stationhouse, in Queens, PO Gregory Elz spoke discourteously to § 87(2)(b)	I . Unsubstantiated

Case Summary

On January 8, 2016, § 87(2)(b) filed this complaint on behalf of herself and two friends: § 87(2)(b) and § 87(2)(b) over the phone with the CCRB.

On January 7, 2016, at approximately 7:18 p.m., § 87(2)(b) and § 87(2)(b) were seated in a car belonging to § 87(2)(b) which was parked at the intersection of 165th Street and 89th Avenue, in Queens. They were in the area so that § 87(2)(b) could run a quick errand at a nearby store, which he had just completed. § 87(2)(b) was rolling a marijuana cigarette, and § 87(2)(b) was allegedly smoking marijuana.

A marked police car stopped suddenly next to them and two officers got out: SGT Scott Hamburger and PO Taylor Kraft, both from the 103rd Precinct. The officers approached the vehicle and ordered everyone to show their hands (**Allegations A and B**). The officers removed everyone from the vehicle, and both officers searched the occupants of the car (**Allegations C, D and E**). Then the vehicle was searched by SGT Hamburger and PO Kraft (**Allegations F and G**). As they waited, an additional police car arrived carrying PO Gregory Elz and PO Robert Immendorfer, both of the 103rd Precinct. PO Taylor allegedly said to § 87(2)(b) “I don’t give a shit who you know” (**Allegation H**).

§ 87(2)(b) and § 87(2)(b) were arrested for § 87(2)(b) and taken to the 103rd Precinct stationhouse. The vehicle was taken there as well. While § 87(2)(b) was in the holding cells, PO Elz allegedly said to her, “You don’t know shit,” (**Allegation I**).

§ 87(2)(b) and § 87(2)(b) were eventually all released with Desk Appearance Tickets.

Mediation, Civil and Criminal Histories

- Due to the arrests of § 87(2)(b) and § 87(2)(b) this case was ineligible for mediation.
- As of March 18, 2016, no Notice of Claim has been filed in relation to this incident (Board Review 15).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) or § 87(2)(b) (Board Review 04).
- SGT Scott Hamburger has been the subject of 21 prior allegations of misconduct across ten cases during his eight year tenure with the CCRB. Of these, four have been related to search and seizure. These cases were closed as either unsubstantiated or complainant uncooperative. There has been only one substantiated allegation against SGT Hamburger, for refusing to provide his name and shield number (Board Review 05).

- PO Gregory Elz has been the subject of two prior allegations of misconduct in one case during his two year tenure in the NYPD. Neither of them was regarding discourteous language, and they were both closed as unsubstantiated (Board Review 06).
- PO Taylor Kraft has never been the subject of a CCRB allegation prior to this case. He has been a member of service for two years (Board Review 07).

Potential Issues

- The recording of more than half of § 87(2)(b)'s interview was lost and could not be recovered. When § 87(2)(b) was reached by phone on January 25, 2016, to provide a statement on the record, he stated that he no longer wished to participate in the investigation and refused to discuss the incident. As such, the undersigned investigator had to transcribe much of his testimony from memory. § 87(2)(b) was reached by phone on February 11, 2016, to schedule an interview and he stated he did not want to provide an in person statement. He had previously provided a phone statement on February 1, 2016.

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegation A – Abuse of Authority: At 165th Street and 89th Avenue, in Queens, SGT Scott Hamburger stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B – Abuse of Authority: At 165th Street and 89th Avenue, in Queens, PO Taylor Kraft stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) and § 87(2)(b) stated that they were seated in § 87(2)(b)'s vehicle when a marked police car pulled up next to them and stopped. They all denied that they were smoking in the car at the time; however, § 87(2)(b) admitted that he was rolling a marijuana cigarette in his lap, and § 87(2)(b) stated that they had been smoking earlier and the car still smelled like marijuana (Board Review 09, 10, 16).

Both SGT Hamburger and PO Kraft consistently stated that the vehicle they were in was equipped with an automatic license plate reader. This reader scans the license plates of the vehicles that the officers pass and instantly notifies the officers if it reads a license plate listed as stolen, or connected to a stolen vehicle. As the officers passed § 87(2)(b)'s vehicle, the reader alerted them that § 87(2)(b)'s license plate was stolen. The monitor in their car identified the vehicle and provided a picture of it, which matched the car that § 87(2)(b) was in. Based on this, they decided to stop and approach § 87(2)(b)'s vehicle to investigate the stolen license plate, and arrest § 87(2)(b) for possession of stolen property. In addition, when the officers first observed § 87(2)(b)'s vehicle, they saw the individuals inside smoking. When the officers got out and approached on foot they immediately noticed the odor of marijuana emanating from the vehicle (Board Review 11, 12).

§ 87(2)(g)
[REDACTED]
[REDACTED]

§ 87(2)(g)

The odor of marijuana provides officers probable cause to believe that marijuana is present, and can provide the basis for stopping, and even searching a vehicle. (People v. Ramos, 2014 NY Slip OP 07031, Board Review 13)

§ 87(2)(g)

. Therefore, it is recommended that *allegations A and B* be *exonerated*.

Allegation C – Abuse of Authority: At 165th Street and 89th Avenue, in Queens, SGT Scott Hamburger searched § 87(2)(b)

Allegation D – Abuse of Authority: At 165th Street and 89th Avenue, in Queens, PO Taylor Kraft searched § 87(2)(b)

Allegation E – Abuse of Authority: At 165th Street and 89th Avenue, in Queens, PO Taylor Kraft searched § 87(2)(b)

Allegation F – Abuse of Authority: At 165th Street and 89th Avenue, in Queens, SGT Scott Hamburger searched the vehicle in which § 87(2)(b) **was an occupant.**

Allegation G – Abuse of Authority: At 165th Street and 89th Avenue, in Queens, PO Taylor Kraft searched the vehicle in which § 87(2)(b) **was an occupant.**

It is undisputed that SGT Hamburger and PO Kraft searched § 87(2)(b) and § 87(2)(b) and that they searched their vehicle. § 87(2)(g)

§ 87(2)(b) denied that they were smoking marijuana at the time the police arrived. They were all ordered out of the car, at which point they were searched. After that, both PO Kraft and SGT Hamburger searched the front seat area of the vehicle. During the search, the officers found marijuana belonging to § 87(2)(b)

§ 87(2)(g)

SGT Hamburger and PO Kraft consistently stated that they noticed the strong odor of marijuana upon approaching the vehicle and observed people smoking inside the vehicle. SGT Hamburger stated that he first approached § 87(2)(b) intending to arrest him for possession of the stolen license plate, and then suspected him and the other occupants of the car of being in possession of marijuana due to the odor and the occupants' appearance of having bloodshot eyes. SGT Hamburger believed that he had probable cause to arrest § 87(2)(b) as his plate reader had identified his car as having a stolen license plate. SGT Hamburger did not intend to arrest the other occupants of the car for the stolen license plate, but believed that he had probable cause to do so. When he detected the odor of marijuana, he considered it probable cause to believe that marijuana was in the car or on the occupants, and would justify a search of either. § 87(2)(b) was searched immediately, incident to his arrest. The other occupants were also searched incident to arrest, but not by SGT Hamburger.

PO Kraft stated that the information received from the plate reader provided probable cause to arrest all the occupants of the vehicle for possession of stolen property. PO Kraft first observed the marijuana when the occupants were being removed from the car. He searched the

car and recovered that marijuana as well as an additional marijuana cigarette. After that, all the subsequent searches of the occupants were incident to arrests for the marijuana.

It is well established by the courts that the odor of marijuana emanating from a vehicle provides an officer with probable cause to believe that marijuana is present on the occupants or in the vehicle. The odor of marijuana is sufficient to justify a search of a vehicle and its occupants (People v. Ramos, 2014 NY Slip OP 07031, Board Review 13).

§ 87(2)(g)

Therefore, it is recommended that *allegations C, D, E, F and G* be *exonerated*.

Allegation H – Discourtesy: At 165th Street and 89th Avenue, in Queens, PO Taylor Kraft spoke discourteously to § 87(2)(b)

Allegation I – Discourtesy: At the 103rd Precinct stationhouse, in Queens, PO Gregory Elz spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that PO Taylor told her, “I don’t give a shit who you know,” when she was arguing with her at the scene of the arrest. Later, when she was in the holding cells at the 103rd Precinct stationhouse, PO Elz approached her and said, “You don’t know shit.” § 87(2)(b) could not recall whether PO Kraft directed profanity at § 87(2)(b) however, he did recall an officer saying, “You don’t know shit,” to her at the stationhouse. § 87(2)(b) recalled an officer directing profanity at § 87(2)(b) but could not recall who it was or what was said. PO Taylor and PO Elz both denied using profanity, and all the officers present denied ever hearing officers use profanity during the incident (Board Review 13, 14).

§ 87(2)(g)

Therefore, it is recommended that *allegations H and I* be closed as *unsubstantiated*.

Squad:

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date

